

24CMCV01413 24CMCV01413

County: los-angeles
Division: Civil Law and Motion
Department: E
Hearing date: 2026-08-25
Motion: MOTION FOR PROTECTIVE ORDER DATE: August 25, 2026 TIME: 8:30 A.M.
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Case Number: 24CMCV01413 Hearing Date: August 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

JASON
RIOS, by and through his Guardian ad Litem, Maria Chavez;

Plaintiff,

vs.

FREEDOM PLAZA, a
California business entity; THE LOS ANGELES CITY HOUSING AUTHORITY, a
California government entity; PRIMESTOR DEVELOPMENT, INC., a Nevada and
Delaware Corporation; PANDA RESTAURANT GROUP, INC., a California Corporation;
WINGSTOP RESTAURANTS, INC., a Texas Corporation; THE HABIT BURGER GRILL, a
California business entity; GLOBAL SECURITY CONCEPTS INC., a California
Corporation; and DOES 1 to 50, Inclusive,

Defendants.

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CASE

NO: 24CMCV01413

[TENTATIVE] ORDER RE: MOTION FOR PROTECTIVE
ORDER

DATE: August 25, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

Primestor Development, Inc.

Responding Party: Plaintiff

James Rios by and through his Guardian ad Litem Maria Chavez

Notice: Ok

Tentative Ruling: Defendant's Motion for
Protective Order is GRANTED.

I.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Jason Rios while he and a friend were eating at an outdoor patio at Freedom Plaza, caused by an attack by four assailants without any provocation.

On

September 16, 2024, Plaintiff Jason Rios, by and through his Guardian ad Litem, Maria Chavez ("Plaintiff") filed the operative Complaint against Defendants Primestor Jordan Downs, LLC (erroneously sued as "Freedom Plaza") ("Primestor LLC"); Housing Authority for the City of Los Angeles (erroneously sued as "The Los Angeles City Housing Authority") (the "Housing Authority"); Primestor Development, Inc. ("Primestor, Inc."); Panda Restaurant Group, Inc. ("Panda"); Wingstop Restaurants, Inc. ("Wingstop"); The Habit Burger Grill ("Habit"); Global Security Concepts Inc. ("Global Security"); and Does 1 to 50, inclusive.[1] Plaintiff alleges the following causes of action: (1) Negligence – Premises Liability; (2) Negligence Per Se; (3) Negligent Security; (4) Dangerous Condition of Public Property (Gov. Code § 835); (5) Negligence – Infliction of Emotional Distress; (6) Negligent Hiring, Supervision, or Retention of Employee. Each cause of action is collectively alleged against all Defendants, except the Sixth Cause of Action which is exclusively alleged against Defendant Global Security.

On August

3, 2026, Defendant Primestor Inc. filed the instant Motion for Protective Order.

On

August 13, 2026, Plaintiff filed an Opposition.

On

August 14, 2026, Primestor filed its Reply.

II.

ANALYSIS

A.

Legal

Standard

Pursuant to Code of Civil Procedure

§ 2017.020, "[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person." (Code Civ. Proc. § 2017.020(a).)

Pursuant to Code of Civil Procedure

§ 2025.420, "[b]efore, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Id., § 2025.420(a).) The party seeking a protective order has the burden of showing good cause justifying the order sought. (Id., § 2025.420(b).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Id., § 2025.420(b).)

B.

Request for

Judicial Notice ("RJN")

Pursuant

to Evidence Code §§ 452(d) and 453, Primestor, Inc. requests the Court take judicial notice of the following cases:

(1) Apple

Inc. v. Samsung Electronics Co., Ltd. (N.D. Cal. 2012) 282 F.R.D. 259 (RJN, Exh. A.);

(2) Liberty

Mutual Ins. Co. v. Superior Court (1992) 10 Cal.App.4th 1282 (RJN, Exh. B.);
and

(3) Westly

v. Superior Court (2004) 125 Cal.App.4th 907 (RJN, Exh. C.).

Evidence

Code § 452 permits the Court to take judicial notice of “[r]ecords of (a) any court of this state or (2) any court of record of the United States or of any state of the United States” as well as “[t]he decisional, constitutional and statutory law of any state of the United States.” (Evid. Code § 452(a), (d).) As judicial notice is permitted as to each of the records contained in Primestor, Inc.’s Request for Judicial Notice, the Court GRANTS Primestor, Inc.’s Request for Judicial Notice in its entirety.

C.

Meet and

Confer

Prior to filing a motion for a protective order, the moving party is required to make “a reasonable and good faith attempt [to meet and confer], either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (See Code Civ. Proc. §§ 2016.040(a), 2025.420(a).)

Primestor, Inc. attaches a declaration of its counsel Julie M. Romersa (“Romersa”) in support of its motion, however the Romersa declaration fails to set forth any efforts to meet and confer in compliance with the Code of Civil Procedure. Accordingly, the Court finds that Primestor, Inc. has failed to satisfy the statutory meet and confer requirement.

Although Primestor, Inc. failed to meet and confer as required, the Court proceeds to determine Primestor’s motion on its merits. All counsel are cautioned, however, to ensure compliance with the requirements of the Code of Civil Procedure moving forward.

D.

Discussion

Primestor moves the Court for a protective order preventing the taking of its Chief Executive Officer Arturo Sneider's ("Sneider") deposition, contending that Plaintiff has already taken the deposition of current and former employees in managerial positions, several with firsthand knowledge of the events on the day of the subject incident, but Plaintiff has treated these depositions as "checking off boxes on a shopping list" in order to serve an amended deposition notice for Sneider. (Mot., p. 4:16-19.) And Primestor argues that Sneider's deposition is unnecessary given that he has nothing more than "second-hand knowledge of the events that occurred on May 14, 2024" (id., p. 5:4-5) and Plaintiff has not made any real effort to exhaust less-intrusive discovery methods or identify any discoverable information necessary to his case. (Id., p. 4:19-21.)

In opposition, Plaintiff argues that Primestor's motion should be denied because Plaintiff has developed a substantial discovery record establishing Sneider possesses direct, firsthand, nonduplicative knowledge concerning material issues in this action. Plaintiff argues he seeks testimony concerning Sneider's personal knowledge of "(1) his communications with and termination of Trujillo; (2) executive-level discussions and decisions concerning heightened security at Freedom Plaza; (3) investor-related security concerns and approvals; (4) security-feature decisions, including blue-light emergency beacons; and (5) post-incident communications and decisions in which he personally participated." (Opp., p. 3:15-18.)

The "Apex Doctrine" protects high-level officers of an organization from depositions when the officer has no first-hand knowledge of the facts of the case or where the officer's testimony would be repetitive. (*Liberty Mut. Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1289 ("Liberty Mutual").) To depose an officer at the apex of an organization requires "a reasonable indication of the officer's personal knowledge of the case and . . . exhaustion of less intrusive discovery methods." (Id. at p. 1287.) "The rule applies to officials summoned to testify as third parties as well as those who are named defendants." (*Westly v. Superior Court* (2004) 125 Cal.App.4th 907, 910.) "An

exception to the rule exists only when the official has direct personal factual information pertaining to material issues in the action and the deposing party shows the information to be gained from the deposition is not available through any other source." (Id. at p. 911 (emphasis in original).)

"[T]he burden is on the deposing party to show that compelling reasons exist for permitting the deposition." (Contractors' State License Bd. v. Superior Court (2018) 23 Cal.App.5th 125, 132.)

It is uncontested that Sneider is Primestor's Chief Executive Officer. Thus, the Court proceeds with its determination as to whether Plaintiff has shown that Sneider has unique or superior personal knowledge of discoverable information pertaining to a material issue in this litigation and, if so, whether such information cannot be obtained by less intrusive means.

1.

Sneider's Communications with, and Termination of, Trujillo

Plaintiff contends Sneider's deposition is necessary because he communicated various case-specific matters to Primestor's former Director of Asset Management Elena Trujillo ("Trujillo") prior to Trujillo's termination and Trujillo and Sneider were the only persons present for that conversation. According to Plaintiff, during the conversation with Trujillo, Sneider "personally communicated information concerning this case, including liability, which Defendant disputes, and a potential insurance-related contractual indemnification issue." (Opp., p. 2:21-25.) Plaintiff argues that the statements allegedly made by Sneider constitute admissions of a party-opponent that can only be verified by Sneider given that there was no one else in the meeting between Sneider and Trujillo. (Id.)

The portion of the deposition transcript attached as Exhibit B to the declaration of Plaintiff's counsel Meheir Jahezian ("Jahezian") declaration filed in support of Plaintiff's Opposition does not support Plaintiff's argument. In pertinent part, Trujillo testified as follows:

Q: Earlier you testified that you were fired by Primestor because of this incident, right?

A: Yes, because of a mistake in the insurance, correct.

Q: And who was the individual that told you that you were fired?

A: CEO, Arturo Sneider.

Q: And what did they tell you about the mistake regarding the insurance?

...

A: That this incident could cost the company potentially a big loss, and that's one of their main reasons.

Q: And to the best of your recollection, those were the exact words that Arturo Sneider used?

A: No, he didn't say that, but there's a statement in a – I have a wrongful termination claim right now.

...

Q: Did they mention – strike that. You mentioned this incident can cost the company potentially a big loss, that was one of the main reasons you were fired. Did they mention Jason Rios by name?

A: No.

Q: Did they mention Freedom Plaza?

A: I believe they did, yes.

Q: And aside from the insurance mistake, did they mention any security failures?

A: No.

Q: Did they mention any prior complaints about security guards?

A: No.

Q: Did they mention the May 023 concern regarding about guard and security quality?

A: No.

(Jahezian Decl., Exh. B (“Trujillo Depo.”), pp. 63:24-65:22.)

Nowhere

in the excerpt of Trujillo’s deposition provided by Plaintiff does Trujillo make mention of Sneider making any statement that might be deemed a party admission warranting Sneider’s deposition.

Trujillo says that she was fired because “this incident could cost the company potentially a big loss,” but when specifically asked if Sneider said those words to her, Trujillo’s answer was “[n]o, he didn’t say that.” (See Trujillo Depo., p. 64:6-25.) At best, the Court reads Trujillo’s

deposition as setting forth Trujillo’s understanding that there had been a “mistake” when negotiating and executing insurance documentation regarding indemnification language and that she was terminated because that “mistake,” in conjunction with the incident at issue here, might potentially result in a “big loss” for Primestor. (See Trujillo Depo., p. 15:13-16:5, p. 64:6-21.)

Plaintiff’s contention that

Trujillo’s testimony “directly connects Sneider’s termination-related statements to the subject property, disputed liability, the Global contract’s indemnification provisions, and Primestor’s potential exposure arising from this litigation” (see Opp., p. 9:13-15) is overstated. First, while Trujillo’s deposition testimony confirms that Sneider mentioned Freedom Plaza during the termination conversation, Trujillo specifically denied that Sneider mentioned Plaintiff Rios, any security failures, any prior complaints regarding security guards, or the “May 2023 security concern regarding [] guard and security quality.”

(Trujillo Depo., p. 65:6-22.) Second,

aside from a statement to the effect of “the incident could cost the company potentially a big loss” (which, as is noted above, Trujillo specifically denies Sneider said) there is nothing in Trujillo’s deposition that evidences Sneider made any comments that might be deemed a party admission as to liability; a

statement that a lawsuit might result in a “big loss” is a far cry from stating that a party admits liability. Third, Plaintiff has made no effort to explain how Trujillo’s deposition testimony as to the indemnity provision in an (unspecified) insurance contract has anything to do with “the Global contract’s indemnification provisions” or what “the Global contract’s indemnification provisions” have to do with the case at hand.

The Court understands the “Global Contract” to be the contract between Primestor and Global for the provision of security services and any “insurance contract” to be separate and apart from the contract between Primestor and Global.[2]

Finally, Plaintiff has not shown any reason why deposition testimony as to Sneider’s opinion as to Primestor’s potential liability in this matter is necessary or warranted, or that Sneider even communicated to Plaintiff that the instant litigation might result in a “big loss.”

Additionally, Plaintiff’s contention that Sneider’s deposition is necessary to establish what was said to Trujillo upon her termination because “[h]e was Primestor’s CEO, and he personally communicated an employment decision made on Primestor’s behalf [therefore] [h]is testimony is necessary to establish what he said, the factual basis for those statements, and the reasons Primestor communicated to Trujillo” (Opp., p. 9:19-22) is unpersuasive for the simple reason that Plaintiff has not provided any reason or logical connection between Primestor’s decision to terminate Trujillo and the elements of any of Plaintiff’s asserted causes of action such that the testimony of Primestor’s CEO might be deemed necessary.

The Court does not find that Plaintiff has set forth good cause for Sneider’s deposition regarding his termination of Trujillo or what was said during Sneider’s decision to terminate Trujillo or Sneider’s meeting with Trujillo prior to her termination.

2.

“Executive-Level Discussions and Decisions Concerning Heightened Security at Freedom Plaza”

Plaintiff contends that Trujillo testified that she reported various security incidents at Freedom Plaza, and her testimony further confirms that Trujillo reported directly to Sneider. Accordingly, Plaintiff argues that Trujillo’s deposition testimony “establishes a basis to examine Sneider concerning the information that reached him, what he understood about the property’s security

conditions, and what responsive actions he considered or directed.” (Opp., p. 9:24-10:10.)

Again, the Court does not find Plaintiff’s arguments persuasive. Plaintiff is correct in that Trujillo testified she directly reported Sneider, that she reported various incidents that occurred at Freedom Plaza, and that the individuals she reported to were aware of the various incident reports. (See Trujillo Depo., p. 22:24-26:24.) What is missing is any argument regarding the need to obtain Sneider’s understanding of the security incidents and any action that Sneider personally may have been taken to address the security incidents and the facts of this matter. While it might be argued that knowledge of security incidents and the failure to properly address those incidents are an element of foreseeability (and thus such information is necessary to show that Primestor had a duty in relation to Plaintiff’s negligence causes of action), there is no showing that Sneider’s deposition is the only means by which such information might be gathered or that there is no other less intrusive means. Given the numerous depositions of various managers and high-level officials already taken, the Court understands that Sneider is not the only person who might testify as to what Primestor knew, what actions Primestor took to address such knowledge, how any of those actions were carried out, and/or what options were considered. Plaintiff has not shown that Sneider acted alone in addressing security concerns at Freedom Plaza such that his deposition testimony is necessary.

3.

“Investor-Related Security Concerns and Approvals” and “Heightened Security Measures”

Plaintiff seeks to depose Sneider also to gain insight and information as to “investor related security concerns and approvals” and the implementation (or failure to implement) heightened security measures such as blue-light emergency beacons. Citing to the deposition of Jermaine McMihelk, Primestor’s former Asset Manager (“McMihelk”), Plaintiff argues that Sneider “possesses superior firsthand knowledge regarding Primestor’s consideration of heightened security measures at Freedom Plaza” (Opp., p. 11:15-16) because the decisions on heightened security measures were made by a team, including Sneider. Thus, Plaintiff argues, Sneider directly participated in such decisions and must be deposed to gather information regarding the particulars of his participation. And, citing to the deposition of Primestor’s

President and Co-founder Leandro Tyberg ("Tyberg"), Plaintiff argues that Tyberg:

(1) identifies Sneider as the "likely recipient of investor concerns regarding security at Freedom Plaza;" (2) "establishes Sneider's direct participation in Primestor's security-related decision not to install blue light emergency beacons;" and (3) "participated directly in the decision to terminate Trujillo." (See Opp., pp. 6:20-8:22.)

The Court does not find Plaintiff's arguments persuasive. The Court has already discussed Plaintiff's arguments regarding Trujillo's termination and Sneider's involvement with that termination above. As to the remainder of Plaintiff's contentions, that the discussions regarding "heightened security measures" included Sneider does not alone warrant taking Sneider's deposition, especially when the deposition testimony notes that there was a "team." Plaintiff has not shown that he is unable to gather whatever information he needs from other members of the "team" as opposed to directly from Sneider. Further, that Sneider is likely the person to have received notice of "investor security concerns" and "investor approval is relevant to security expenditures" (Opp., p. 7:10) also does not warrant Sneider's deposition. What might be relevant here is that the heightened security measures were apparently not implemented, but Plaintiff already has that information from other sources. Without further explanation, the reason(s) why those heightened security measures were not implemented appears immaterial. Finally, Plaintiff's arguments as to Sneider's knowledge of security measures and why such security measures were not implemented discount Tyberg's testimony. By way of example, according to Plaintiff Tyberg has already testified that the reason behind Primestor's failure to install blue-light emergency beacons. (See Opp., p. 7:19-20 ("Arturo and I have always avoided installing the Blue Light Emergency Beacons because there has been historical litigation relating to their usage")(citing Tyberg Depo., p. 65:21-67:23).) What Plaintiff seeks, therefore, is not something solely within Sneider's knowledge but rather a confirmation (or perhaps contradiction) of testimony it has already obtained from Tyberg.

However, if the goal is to understand why Primestor did not install such heightened security measures, Plaintiff has already obtained that testimony. Plaintiff's argument that, because Sneider participated in the discussions and decision-making he must be deposed to understand "his own participation, communications, knowledge and rationale" (see Opp., p. 7:23-25) would eviscerate the Apex Doctrine because, per Plaintiff's rationale, any high ranking corporate official could be deposed as to his reasoning behind making any decision in which that corporate official participated (which, given Sneider's position as CEO, is likely all corporate decisions).

In all, and while the Court acknowledges that Plaintiff has deposed other Primestor employees, Plaintiff has not shown that lesser-intrusive methods of discovery have been “exhausted” and does not provide sufficient evidence to support a showing that Sneider has the unique or superior personal knowledge of the discoverable information required. What emerges from a reading of Plaintiff’s Opposition is that Sneider, as CEO, may have been involved in various decisions regarding Freedom Plaza, as a CEO is likely to be. However, even if Sneider may have personal knowledge of information, such information must be unique, discoverable and relevant to the present case and Plaintiff must be unable to gather that information using less intrusive means. Plaintiff has not demonstrated that Sneider’s testimony is or would lead to discoverable information necessary to Plaintiff’s claims in this case and has not demonstrated that all less intrusive means have been exhausted. Further, as to certain of the information, Sneider’s information, while it may be personal to him, is not demonstrably unique such that his deposition is required.

Thus, the Court finds that Plaintiff has not met his burden to show good cause that Sneider has unique or superior personal knowledge of discoverable information. Accordingly, the Court grants Defendant’s request that the Court issue a protective order precluding Plaintiff from taking the deposition of Sneider. In granting Primestor’s motion, however, the Court specifically notes the following:

(1)

Should

Plaintiff be able to show a need for Sneider’s deposition, the Court will entertain a request for Sneider’s deposition to be taken. Should Plaintiff gather further information supporting a need for Sneider’s deposition, the parties are directed to call the Court Clerk and schedule an informal discovery conference. At the conference, the parties are directed to be prepared to discuss: (a) the specific testimony sought; (b) the reason(s) why only Sneider can provide the information; (c) what other avenues have been pursued to obtain the information; and (d) the relevance of the information sought to the elements of the causes of action asserted; and

(2)

Having

granted Primestor’s Motion for Protective Order, Sneider’s deposition will not be taken. However, Plaintiff has now

twice noticed Sneider's deposition and Plaintiff is entitled to depose all persons who will be witnesses at trial. If Primestor intends to call Sneider as a witness during trial, he will need to be deposed. Furthermore, if Primestor intends to file a dispositive motion relying upon Sneider's declaration, he will need to be deposed.

III.

CONCLUSION

Primestor's Motion for Protective Order is GRANTED.

[1] Responding Parties Primestor, Inc., Primestor LLC and the Housing Authority are collectively referred to herein as the "Defendants."

[2] The Court further understands that the argument being made here is an amalgamation of Trujillo's testimony that she had been fired because of indemnity provisions in an unspecified "insurance contract" and President and Co-Founder Leandro Tyberg's deposition testimony that the indemnity provision concerns had to do with the Primestor's contract with Global. (See Jahezian Decl., Exh. A ("Tyberg Depo."), p. 80:14-82:7.) Regardless of whether the indemnity language concerns related to an insurance contract or to Primestor's contract with Global, Plaintiff has not set forth good cause why an investigation – made through Sneider – of Primestor's concerns with any indemnity provision is necessary to prosecute this matter.